

remain applicable today. “That is, the Legislature intended to take the “game” element out of trial preparation while yet retaining the adversary nature of the trial itself. One of the principal purposes of discovery was to do away “with the sporting theory of litigation—namely, surprise at the trial.” *Chronicle Pub. Co. v. Superior Court*, 54 Cal.2d 548, 561. See also page 572 of the same opinion wherein we adopted from *United States v. Proctor & Gamble Co.*, 356 U.S. 677, the phrase that discovery tends to “make a trial less a game of blindman’s buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.”

After considering the moving papers, including the declarations submitted to the Court, the arguments of Counsel, and after applying the relevant statutory and decisional authorities, the Court makes the following findings and orders.

Ruling

Plaintiff’s Motion to Compel further Responses to Request for Production of Documents, Set One, is **granted**. Defendant FCA US LLC is ordered to produce, within 15 calendar days of this order, further response to Plaintiff’s Request for Production of Documents, Set One Nos. 16-21 and the all documents corresponding to these responses. FCA’s objections are stricken. The Court will execute the proposed order lodged by Plaintiff with the Court on July 2, 2025.

13. 9:01 AM CASE NUMBER: C24-02486

CASE NAME: TODD SARAN VS. ANDRES BERGERO

***HEARING ON MOTION FOR DISCOVERY QUASH, OR, IN THE ALTERNATIVE, FOR A PROTECTIVE ORDER RE: DEFENDANT’S SUBPOENA FOR PRIVATE EMPLOYEE RECORDS**

FILED BY: SARAN, TODD

TENTATIVE RULING:

Summary

Plaintiff Todd Saran (“Plaintiff”) filed a Motion to Quash or, in the alternative, Motion for Protective Order re Defendants Bank of Montreal and Bank of the West’s (“Defendants”) Subpoena for Private Employment Records is **denied** as set forth herein.

Background

In this case, Plaintiff alleges causes of action for whistleblower retaliation and wrongful termination suit. Plaintiff claims that the Defendants systematically stole money from its customers, by charging a higher transaction rate than the rate quoted. Plaintiff Saran discovered this fact and persistently reported the Defendants’ misconduct. The Defendants fired Todd Saran shortly thereafter and in retaliation for his good faith whistle-blower conduct.

On May 14, 2025, Defendants served notice of a J.P. Morgan Chase subpoena on Plaintiff. Plaintiff was not informed what date Chase was served with the subpoena. Plaintiff claims that “The subpoena seeks every shred of paper whatsoever relating to Plaintiff, from January 1, 2019 to the present.” For reference, Plaintiff was not even employed by Defendants until more than two years later, in April 2022. Defendants have made no attempt to limit and tailor the subpoena to a directly relevant time

period and to capture only discoverable documents, or otherwise comply with the law.

On June 3, 2025, Plaintiff Todd Saran (“Plaintiff”) filed a Motion to Quash or, in the alternative, Motion for Protective Order re Defendants Bank of Montreal and Bank of the West’s (“Defendants”) Subpoena for Private Employment Records. The Motion was accompanied by the Declaration of Counsel Jacqueline Gill, a Separate Statement and Proposed Order. By his motion, Plaintiff seeks to quash the subpoena for all of Plaintiff’s employment records from J.P. Morgan Chase & Co. from January 1, 2019 to the present on the grounds that the subpoena is overly broad as to time and subject matter, invades Plaintiff’s constitutional right to privacy, and is unnecessarily invasive. Plaintiff seeks \$1,957 from Defendants in sanctions pursuant to California Code of Civil Procedure §§ 2017.020(b) and 2019.030(c).

In its Opposition filed on September 29, 2025, supported by the Declaration of counsel, Defendants claim that the documents sought in their subpoena to J.P. Morgan Chase & Co (“Chase”) are relevant in that they are reasonably calculated to lead to the discovery of admissible evidence pertaining to Plaintiff’s employability, reputation, damages and credibility. Defendants claim that Plaintiff lied on his March 2022 employment application to Bank of the West. Defendants assert that when Chase discovered that Plaintiff lied on his employment application, Chase terminated their employment offer to Plaintiff and banned him from future employment. Defendants also claim that Plaintiff waived any privacy protections to the extent that any existed by disclosing these facts of his dishonesty to Defendants.

Plaintiff filed a reply brief on October 6, 2025 arguing, among other things, that Plaintiff did not lie on his March 2022 employment application with Defendant. Plaintiff has never been “terminated from a position for cause,” and Defendant has presented no evidence otherwise. Plaintiff was never hired by Chase, and his inability to be hired at Chase does not constitute after acquired evidence.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at 402. On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Protective Order

In *Greyhound Corp. v Superior Court* (1961) 56 C2d 355, the California Supreme Court set out the factors to be considered in balancing the rights of parties seeking discovery against those of parties

from whom information is sought and who seek protective orders. Under *Greyhound*, a court that has been asked to issue a protective order should apply the following factors to the particular case (56 C2d at 382):

- The purpose of the information sought;
- The effect disclosure would have on the parties and the trial;
- The nature of the objections urged by the party resisting disclosure; and
- The court's authority to make an alternative order that may grant partial disclosure, disclosure in another form, or disclosure only in the event that the party seeking the information undertakes certain specified burdens justified by the circumstances.

Under *Greyhound*, a court should also consider certain general legal concepts in ruling on a motion for a protective order, such as that discovery statutes should be broadly construed in favor of disclosure. 56 C2d at 377.

Under Cal. Code of Civ. Proc. §2034.250, taking into consideration "that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense," the Court may make any order:

- The demand be quashed as not timely served;
- The date of exchange be earlier or later;
- The exchange be made only on specified terms and conditions;
- Production and exchange of reports be made at a different time or place than specified in the demand;
- The parties be divided into sides on the basis of identity of interest in the issues, and the designation of employed or retained experts be made by sides so created rather than parties; and
- A party or a side reduce its list of employed or retained experts.

In applying the foregoing legal standards to Plaintiff's Motion, the Court finds that there is insufficient cause to quash the subpoena served by Defendants to Chase, and to enter a protective order as requested. The Court finds that Plaintiff waived his privacy interests in the records subpoenaed from Chase, as the records sought are directly relevant to the issues of his employability, reputation, damages and credibility. Defendants are entitled to determine whether Plaintiff made certain misrepresentations on his March 2022 employment application to Bank of the West. Defendants are entitled to discover whether Chase terminated an employment offer to Plaintiff and banned him from future employment for making representations on his application. These issues go to credibility.

Sanctions

The Court has the discretion to award reasonable expenses incurred in making or opposing a motion to quash or modify a subpoena under Cal. Code of Civ. Proc. §1987.1, including attorney fees, if it finds the motion was made or opposed in bad faith or without substantial justification, or that one or more of the requirements of the subpoena were oppressive. CCP §1987.2(a). See, e.g. *Evilsizor v Sweeney* (2014) 230 Cal.App. 4th 1304, 1310 (court acted within its discretion under CCP §1987.2 in awarding

sanctions against party who failed to withdraw motion to quash after propounding party's amendment to subpoena rendered motion unnecessary). Here, in light of the foregoing, the Court finds that Defendants' opposition to the Motion is made in good faith and with substantial justification, given the facts sought to be discovered.

After considering the papers submitted by Counsel, and applying the relevant statutory and decisional authority set forth above, the Court finds good cause to make the following findings, orders and ruling.

Ruling

1. Plaintiff's Motion to Quash or, in the alternative, Motion for Protective Order re Defendants Bank of Montreal and Bank of the West's ("Defendants") Subpoena for Private Employment Records is **denied**.
2. The Court finds that Defendant acted with substantial justification in opposing this Motion. As such, Plaintiff's request for sanctions is **denied**. Each party shall pay their own attorney's fees & costs in prosecuting and defending this motion.
3. Any record produced as response to Defendant's Subpoena to Chase is subject to the protective order entered by the Parties. The Parties are ordered to meet and confer to effectuate the intent of this order and the protective order.
4. Defendants' counsel is ordered to prepare and e-file a proposed order conforming to this tentative ruling, approved as to form by Plaintiff's counsel, no later than ten (10) days from the date of the hearing of this Motion.